

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Will is not self-proving (witnesses did not execute any declaration or affidavit).
Missing proof of will.

20. S-PR-0014201 In Re the Mae Essington 2003 Liv Trust

Missing sufficient notice of hearing for petition to instruct trustee. Notice as filed and served states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

It is recommended the petition for instructions be denied. The petition does not allege facts sufficient to establish that a 2003 trust existed or exists now, or, if it does, that Randy Geering Sr is the trustee. The petition admits that the identification of the trustee is merely presumed by petitioner. Petitioner offers no information about title to the modular home; if it is titled outside the trust, it does not become an asset by operation of the will until the will is probate and the estate is administered. The petition is factually and legally insufficient to support any requested relief.

These calendar notes are not a tentative ruling by the court on the merits of the petition. They are provided to assist the court and the parties to prepare for the hearing. Local Rule 80.1.4.

21. S-PR-0014202 In Re the Estate of Gates, Cathy M

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing original will, Prob.C. § 8200(a).

22. S-PR-0014203 In Re the Estate of Rutherford, James Jr.

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

23. S-PR-0014204 In Re the Estate of Brafford, Thelma Joyce Merie

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department

2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

Missing declaration re terms of beneficiary trust. Local Rule 80.2.1.

24. S-PR-0014205 In Re the Estate of Taylor, Tommy M Jr

Missing sufficient notice of hearing for petition to administer estate. Notice as filed, served, and published states incorrect location information for Department 2. Department 2 is located at Historic Courthouse, 101 Maple Street, Auburn, and not at the Hon. Howard G. Gibson Courthouse in Roseville.

25. S-PR-0014206 In Re the Estate of Christensen, Katherine L

Petition to administer estate is recommended for approval as prayed.

26. S-PR-0014207 In Re the Levitre Fam Trust

Missing sufficient notice of hearing for petition to determine trust property. Use of mandatory form DE-115 is required. Form DE-120 is insufficient under Prob.C. § 851(c)(1) & (3).

If the court were to determine no further service is required, the following calendar notes are provided:

It is recommended the petition be granted as to the Associated Bank, Blaze CU, and Wings Financial accounts only.

It is recommended the petition be denied as to the Fidelity 401(k) account. Concurrent with execution of the trust, settlors executed a funding document which provides, "Tax-favored assets on which recognition of income has been deferred including but not limited to IRAs, Roth IRAs, qualified plans under IRC §401(a), . . . and qualified deferred compensation shall not be included [as trust assets] pursuant to this comprehensive transfer document and shall not be deemed transferred to the trust." This limitation precludes the requested relief.

Prob.C. § 850 relief as to the Fidelity 401(k) account cannot be supported the pourover will. The pourover will has no effect until probated. "In the absence of any transfer to [a] trust *prior to* [decedent's] death," assets become part of the decedent's estate despite will language expressing decedent's desire that assets be held in trust. *Placencia v. Strazicich* (2019) 42 Cal.App.5th 730, 735 & 743-744 (emphasis added). "It [is] error for the court to award [such property] directly to [a] trust in the absence of a probate proceeding." *Id.*, citing *Estate of Hart* (1957) 151 Cal.App.2d 271, 280-281. See also Prob.C. § 7001. "[A] probate court ha[s] no power to consider the legality of a will until it [is] regularly brought before it by a petition for its probate." *Estate of Burnett* (1935) 6 Cal.App.2d 116, 123.